

Mazid v. State of U.P. — recovery citation — objections before Executive Engineer — s.127 after final order

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · WRIT - C No. - 42564 of 2019 · **Writ disposed; petitioner to file objections before EE; speaking final order; s.127 if aggrieved; coercive action stayed six weeks.**

HEADNOTE

A Division Bench declined to quash a recovery notice on merits. It directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking reasoned final order within four weeks, stayed coercive action for six weeks or until disposal of the objection, left an appeal under Section 127 of the Electricity Act, 2003 open if the consumer was aggrieved by that final order, and provided that the recovery citation would revive automatically if the consumer failed to appear.

FACTUAL SUMMARY

Mazid approached the Allahabad High Court seeking certiorari to quash a notice dated 1 October 2019 issued by respondent no. 3. He alleged that the electricity department was taking coercive recovery action without an opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard. The Division Bench noted the challenge to what it later described as the impugned recovery citation.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation after speaking final order

HOLDING

Where a consumer challenges a recovery notice or citation in writ without a final assessment order having been passed, the High Court may decline to quash the notice on merits, direct the consumer to appear before the Executive Engineer with objections and evidence, require a speaking reasoned final order within a fixed time, stay coercive action in the interim, keep an appeal under Section 127 of the Electricity Act, 2003 open if the consumer is aggrieved by that final order, and provide that the recovery citation revives automatically if the consumer fails to appear. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing the Executive Engineer to pass a speaking final order on the consumer's objections, the Court left the petitioner to an appeal under Section 127 if aggrieved; the writ was not decided on the validity of the notice. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment The Court first required a final speaking order from the Executive Engineer and only then kept Section 127 open, treating the impugned notice/recovery citation as not itself the final order against which the statutory appeal would lie. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 01.10.2019 NOTICE OR RECOVERY CITATION VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005 OR WAS ISSUED WITHOUT HEARING

Writ disposed by directing appearance before the Executive Engineer for a speaking final order; merits of the notice not examined.

¶ 1

